

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, September 27, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Under New business

Item C removed Resolution 2024-14 Parks and Rec Revolving Fund

Item D removed Resolution 2024-15 Police Department Revolving Fund

Item F removed Resolution 2024-16 Airport Hangar Bond

A motion was made by Councilor stone and Seconded by Councilor O’Hearn to suspend councilor rules.

Roll call:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - No

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Mooshian - Yes
Girard - Yes
Motion carried 8-1

A motion was made by Councilor Stone and Seconded by Councilor Batchelder to add the Nonpublic under RSA-91 A3;2 (C) Matters which, if discussed in public, would likely affect adversely the reputation of any person, other than a member of the public body itself, unless such person requests an open meeting. This exemption shall extend to include any application for assistance or tax abatement or waiver of a few, fine or other levy, if based on inability to pay or poverty of the applicant.

Roll call:
O’Hearne – Yes
Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - No
Mooshian - Yes
Girard - Yes
Motion carried 8-1

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to accept the minutes of the September 13, 2023, City Council meeting with a change of date to September 13th 2023.

Voice vote:
O’Hearne – Yes
Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - Yes
Mooshian - Yes

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Girard - Yes
Motion carried 9-0

MAYOR'S NOTES

Filings for Municipal election are open until Friday.

Saturday, September 30th The Claremont Sugar River Rotary Club is hosting a Ukraine event.

Sunday, October 1st Claremont Christian Academy ribbon cutting on River Road at 3:30pm.

Registering new voters at the City Clerks Office.

Monday, October 9th TAC will be meeting for traffic pattern 1:00 pm.

CITY MANAGER'S REPORT

Manager Manale reminded citizens for the Reevaluation do not use current tax rate, please call 1-888-444-4300 or stop by planning office.

DPW has started paving, unfortunately it is delayed due to all the rain in the last few months

Community Center has received the new equipment.

Koloski- Under Mayor's notes Friday October 13th at 6:30

Councilor Contois asked for clarification on ribbon cutting and TAC meeting.

APPOINTMENT TO BOARDS AND COMMITTEES

CITIZEN'S FORUM

Mayor Girard reminded all citizens may speak for 5 minutes on non-agenda items, and asked to announce their name and ward.

Judith Koester Ward II- Read letter speaking against Acuity.

Rebecca McKenzie Ward II- Read letter speaking against Acuity.

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Representative Hope Damon – Shared a report on activities relating to the State House. Representative Damon says thank you to Mr. Rapp and Mr. Hays. Work sessions on teacher retention, mental health and special education. Mentions public hearing for Department of transportation on October 2nd at 6:30 discussing 10-year transportation plan. Shares information about soup kitchen visit.

OLD BUSINESS

Ordinance 612 Special Assessment – Second Reading – Public Hearing

Councilor Stone questions why Ordinance 612 is listed as a second reading given there was a change.

Councilor O’Hearne agreed with Councilor Stone.

Councilor Koloski expresses it’s a minor word change.

Councilor O’Hearne states the Ordinance is Publicized as a second reading but is not a second reading and needs to be publicized as a first reading.

Councilor Koloski wishes to proceed as it was only given it was only one word change.

Councilor O’Hearne reminds the Council if you proceed as a first reading the council would need to suspend council rules make the change and then the council can proceed.

Assistant Mayor Matteau asked for clarification on how many readings Ordinance 612 needed. Expressed she agreed to proceed with the second reading.

Mayor Girard stated the or changed the whole meaning of the sentence.

Councilor O’Hearne would like to have a vote.

Mayor Girard asked for a Roll call weather or not the Council is going to proceed.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #612

Claremont City Code Amendments

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, the Claremont City Code is hereby amended as follows:

Section 1. Chapter 15, Sections 15-1 through 15-9- Special Assessments.

Revise and update Sections 15-1 through 15-9, as follows:

Sec. 15-1. – Action upon receipt of petition or recommendation.

The city council shall give notice and hold public hearings to consider imposing special assessments when it receives:

- A. a petition signed by the owners of at least two-thirds of the property proposed for special assessment; or,
- B. upon receipt of a recommendation from the city manager for a special assessment.

The city council shall consider and take action as it deems appropriate.

(Ord. No. 165, § 1, 1-12-77)

Sec. 15-2. - Contents of petition and recommendation.

Any petition or recommendation submitted under the provisions of section 15-1A shall contain within the text of the petition or recommendation or by attachments thereto:

- (1) The public improvement proposed, including surveys, plans, engineering drawings, specifications, and such other documentation as shall be necessary to clearly set forth the proposal. (2) An estimate of the costs of the proposed improvements, broken down by appropriate categories and line items and substantiated by persons fully qualified to give such estimates. (3) A roll showing the names, addresses, and title references of all the owners of the property proposed for special assessment. (4) The portion of the costs proposed to be defrayed by the special assessment. (5) The formula proposed for determining the portion of the special assessment to be taxed to specific properties. (6) The number of installments proposed for the special assessment.

(Ord. No. 165, § 2, 1-12-77)

Sec. 15-3. - Filing of the petition.

The original copy of the petition for a special assessment shall be filed with the city clerk along with a certificate by one (1) of the petitioners that copies of the petition and all supporting documents have been delivered to the city manager and city solicitor.

(Ord. No. 165, § 3, 1-12-77)

Sec. 15-4. - Action by city solicitor.

Within ten (10) days after receipt of a copy of the petition for special assessments, the city solicitor shall notify the council, through the city manager, and one (1) of the petitioners whether or not, in his opinion, the petition submitted meets the requirements of section 15-2; and, if it does not, what further documentation is needed. In the event further documentation is required by the city solicitor, and it is then filed in accordance with section 15-3, the city solicitor shall then notify the council, through the city manager, and one (1) of the petitioners, that the petition then meets the requirements of section 15-2.

(Ord. No. 165, § 4, 1-12-77)

Sec. 15-5. - Notice of public hearing.

At the next regular meeting of the council, after receipt of notification by the city solicitor, as required by section 15-4, or recommendation from the City Manager, the council shall set a date for a public hearing and cause notice to be given to the public at least fourteen (14) days before the hearing. By certified mail, the city will properly notify all owners of the properties proposed for a special assessment of the public hearing.

(Ord. No. 165, § 5, 1-12-77)

Sec. 15-6. — Public hearing.

At the public hearing, the council shall hear the petitioners, the City Manager or their designee, and all others who offer evidence or comments concerning the proposed public improvement, the costs thereof, the property proposed for the special assessment, the portion of the costs to be defrayed by the special assessment, the formula for determining the special assessment for each property and the number of installments. If deemed necessary by the council, the hearing may be adjourned from time to time.

(Ord. No. 165, § 6, 1-12-77)

Sec. 15-7. – Council action.

If, after hearing, the council shall determine that the proposed public improvement should be approved and that the whole or any part of the expense thereof should be defrayed by special assessments upon the property especially benefited, it shall so declare by resolution. The resolution shall state:

(1) The improvements and their specifications. (2) The estimated costs thereof. (3) The portion of the costs to be paid by special assessments and the portion to be a general obligation of the city. (4) The roll of properties on which the special assessments are to be levied. (5) The formula to be used by the city assessor to determine the portion of the special assessments to be levied against specific properties. (6) The number of installments in which the special assessments may be paid.

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(Ord. No. 165, § 7, 1-12-77)

Sec. 15-8. – Duties of city assessor.

When the council has, by resolution, authorized special assessments, the city assessor shall:

- (1) Compute the amount of the special assessment for each property.
- (2) Bill the property owner along with the regular annual real estate tax bills.

(Ord. No. 165, § 8, 1-12-77)

Sec. 15-9. - Appeals.

In the event any property owner believes that the special assessment levied against his property is in error, he shall have the same rights for abatement and appeal as he has for other real estate taxes.

(Ord. No. 165, § 9, 1-12-77) (Ord. No. 165, § 9, 1-12-77)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 15, Sections 15-1 through 15-9- Special Assessments of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced or implemented immediately upon passage.

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Roll call:

O’Hearne – No

Batchelder - No

Stone - No

Matteau -Yes

Koloski - Yes

Limoges – No

Contois -Yes

Mooshian - No

Girard - No

Motion Failed: 3-6

Ordinance 612 Will come back at next meeting.

Ordinance 613 Quarterly Billing to Bi- Annual – Second Reading – Public Hearing

Director Mullholland explained Ordinance 613.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Mayor Girard questioned what notice would be sent out to the residents.

Councilor O’Hearne questions the notice as well.

Director Mullholland explains the City can write a letter and have that included in the next tax bill.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #613

Claremont City Code Amendments

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, the Claremont City Code is hereby amended as follows:

Section 1. Chapter 2, Administration, Article III, Division 13, Section 2-360.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Amend section 2-360 as follows:

Sec. 2-360. - Fiscal year.

(a)The fiscal year of the city shall commence on July 1 and end on June 30 of the following year. This fiscal year shall be used for purposes of making appropriations and for financial reporting and shall be uniformly adopted by all departments of the city.

(b)The city adopts the system for the semi-annual collection and billing of taxes provided for by RSA 76:15-a.

(Ord. No. 262, § 24.5, 1-11-89; Ord. No. 445, 9-10-03; Ord. No. 529, § 1, 9-12-2012)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 3, Article III, Division 13, Section 2-360- Fiscal Year of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced or implemented immediately upon passage.

Ordinance summary was read into the record by Assistant Mayor Matteau and seconded by Councilor Batchelder.

Roll call:

O’Hearne – No

Batchelder – Yes

Stone - Yes

Matteau -Yes

Koloski - Yes

Limoges – Yes

Contois -Yes

Mooshian - Yes

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Girard -Yes
Motion Carried: 9-1

NEW BUSINESS

Broad Street Landscape Plan Presentation

Tim Hernon Superintendent of parks and recreation. Explains diagrams and why the marked trees need to be removed.

Mayor Girard inquires about how long Mr. Hernon think the trees will last.

Councilor Stone inquires if DPW will be removing the trees or will the City contract the job out.

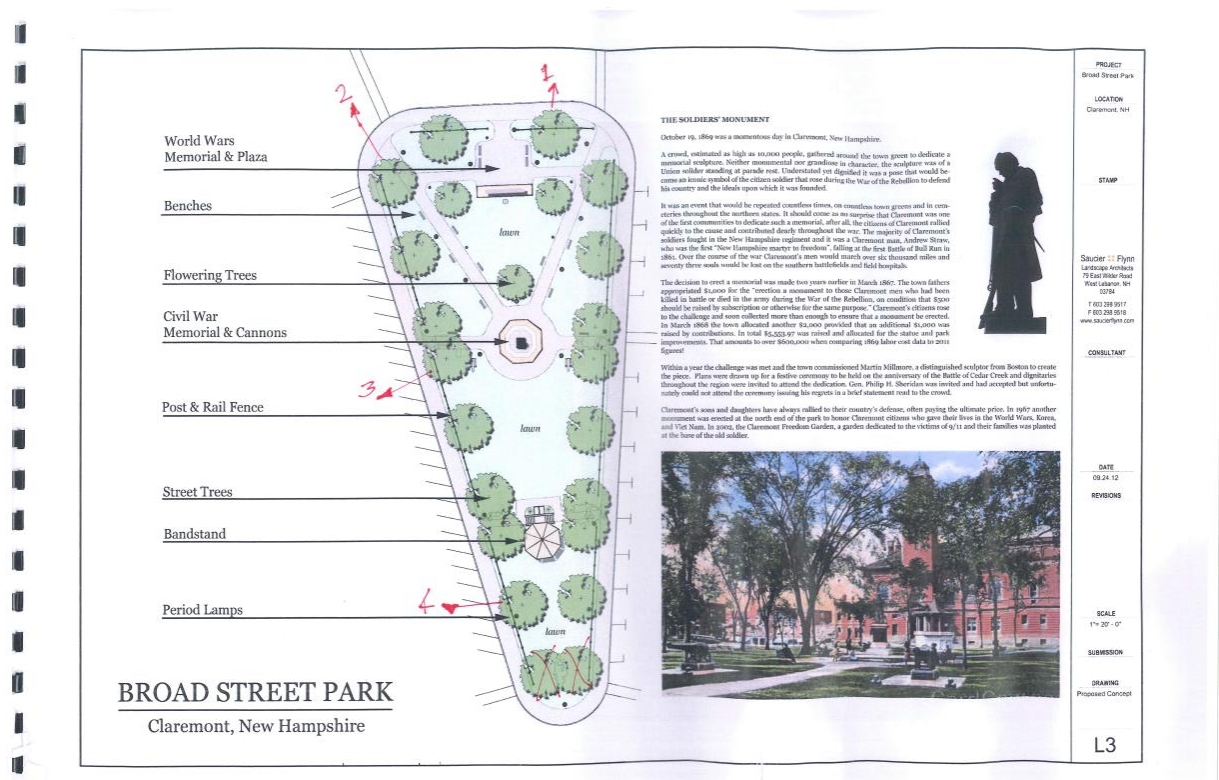
Mr. Hernon the City will contract out for the larger trees, smaller for parks and DPW to take care of.

Councilor O’Hearne asked if this item would be added into the budget.

Manager Manal explains this was just informal and to not be surprised in the future.

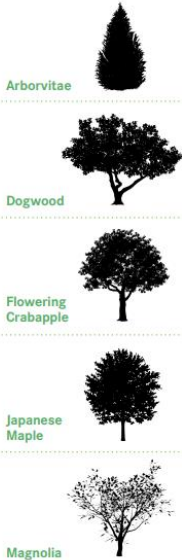
Councilor Stone asked if any trees been deemed an immediate danger.

Mr. Hernon States no not immediate danger.

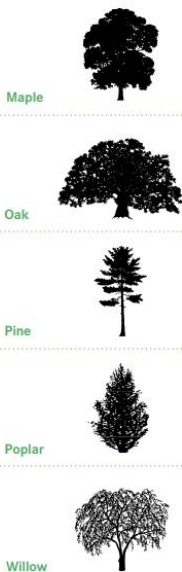


Plan before you Plant

LOW Growing Species



TALL Growing Species



Plant the Right Tree in the Right Place for Electric Service Reliability

Trees and power lines don't mix. When they touch, it can cause everything from power outages, fires and downed lines, to safety hazards for people, wildlife and even the trees themselves.

Tree branches too close to power lines must be trimmed, and adequate trimming can't always be done in ways that retain the natural aesthetics of the tree.

Low-growing trees, such as crabapple, dogwood, hawthorn, plum, and arborvitae, can be planted near roadside power lines, in the **Red Zone**.

Medium-sized trees, maturing at heights of 30-45 feet, can be planted between **15 and 30 feet from the power lines**, in the **Yellow Zone**. Such trees include ornamental pear, yellow wood, magnolia, hornbeam, and shadblow.

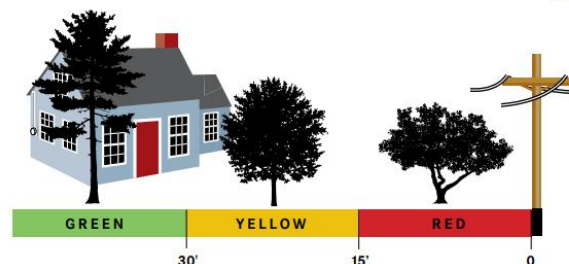
Large-growing trees, reaching heights of more than 45 feet, should be planted **at least 30 feet from power lines**, in the **Green Zone**. Oak, maple, hickory, spruce, and pine are some examples.

Plant Trees in the Proper Zone

Green Zone: Trees greater than 45' high

Yellow Zone: Trees 30 - 45' high

Red Zone: Trees less than 25' high



Call Before You Dig!

Be sure to call Dig Safe at

1-888-344-7233

before digging around your
home or business.



**Public Service
of New Hampshire**
The Northeast Utilities System

www.psnh.com

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Investment Policy Review

Investment Policy Review was moved to next meeting October 11, 2023.

Ordinance 614 Historic District Signs – First Reading – Public Hearing

City Planner Bearse explains Ordinance 614

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #614

ZONING ORDINANCE AMENDMENTS SIGNS IN THE HISTORIC DISTRICT

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Signs in the Historic District.

Amend Section 22-604 by adding a new Sec. 22-604(8) to streamline the process for new signs in the Historic District by exempting such signs from the need to obtain a Certificate of Appropriateness if they meet specific standards, reading as follows:

Sec. 22-604(8). In the Historic District.

Signs that comply with the following design standards will not be required to obtain a Certificate of Appropriateness as would otherwise be required under Sec 22-405(4).

The total number of signs and their total allowed square footage shall comply with the underlying zoning district except where specifically limited by the requirements below.

a. General

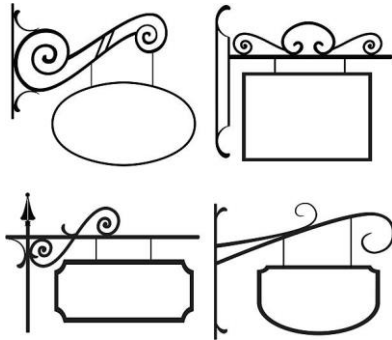
1. Wood and metal signs are allowed
2. The use of plastic, vinyl and other synthetic materials is prohibited as they are out of character for the Historic District.

Two types of signs are allowed in the Historic District – affixed and freestanding.

b. Affixed signage in the historic district may be in the form of:

1. Blade or projecting signs:
 - Blade or projecting signs shall:
 - be limited to the first and second stories of a building only.
 - be attached to the building at right angles to the building face.
 - have attached, painted or engraved lettering.
 - have a maximum area of 12 square feet each.
 - not project above the roof or cornice line of the building.
 - clear sidewalks by a height of at least eight (8) feet above ground level.
 - be centered over or located near the principal doorway to the building.
 - not be located at building corners where they do not meet perpendicular to the building façade.
2. Signage that is attached parallel to the building face:
 - This type of signage shall be located within the existing sign banner of the building, if one exists.
 - If no banner exists, the signage shall be located above the main entrance door and windows of the store face and shall not cover any architectural details.
3. Lettering on storefront window or awning:
 - If an awning exists, affixed signage may consist of lettering printed on the awning fringe.
 - Window lettering shall be painted on or of applied vinyl.
 - Whenever possible, window signs should be located on the window beside the primary business entrance.
 - Permanent window signs may be painted on or affixed to the inside of one window of the business but may cover no more than 25% of the total window area located on the front of the building.
 - Additional information may be placed on the window of the entrance door of the business.

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c. Freestanding Signs

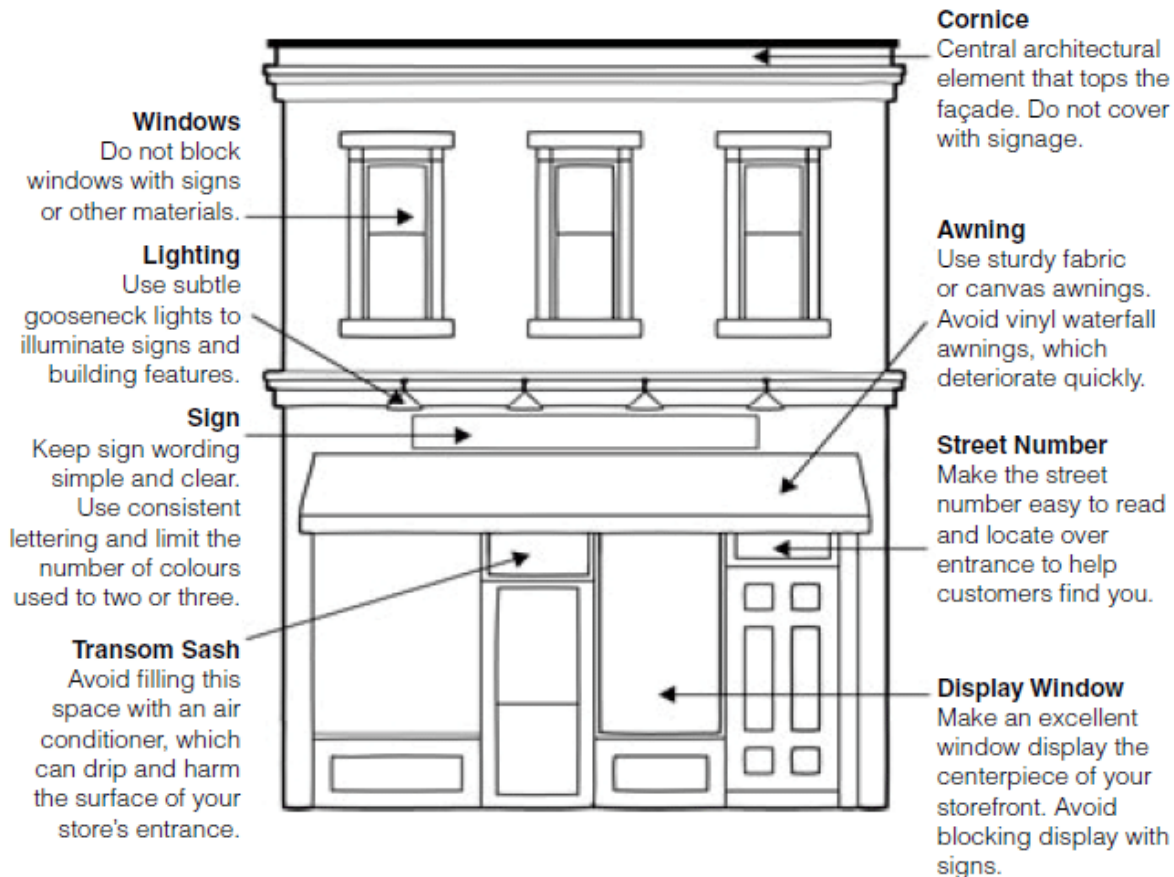
1. No such sign shall exceed five (5) feet in height from ground level to the top of the sign.
2. The total area shall not exceed the underlying zoning district maximum.
3. No freestanding sign shall be located closer than:
 - a. four (4) feet to any street right-of-way,
 - b. four (4) feet of any side property line or
 - c. fifty (50) feet of any dwelling.
4. No freestanding sign shall obstruct driver visibility.
5. Whenever possible and without obstructing driver visibility, freestanding signs shall be incorporated in a hedge or landscaping feature.

d. Sign Lighting

1. Wall mounted and goose-neck fixtures are appropriate for lighting signs that are parallel to the building face.
2. Blade signs may have directional pendant lighting.
3. A ceiling mounted fixture may illuminate recessed entries.
4. Neon lights and internally-lit signs are not permitted.

e. Architectural features for signs in the historic district: see diagram below.

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Amend Section 22-406 to add a new Sec. 22-406(5) exempting new signs in the historic district that comply fully with the standards in 22-604(8), as follows:

Sec. 22-406. - Exceptions.

The historic district commission is not required to review the following activities:

- (1) Ordinary maintenance and repair of any architectural feature which does not involve a change in the design, materials or outer appearance or involve removal thereof.
- (2) Painting or repainting of a wood surface and/or an already painted masonry surface.
- (3) Roofing or reroofing (with the same material) of a building or structure providing the roof plane remains the same.
- (4) Storm doors and storm windows providing that the original architectural features are not removed or destroyed.

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(5) Signs fully complying with the standards in Sec 22-604(8).

Amend Section 22-596 to eliminate the need for a Certificate of Appropriateness for new signs in the Historic District if they meet standards of Section 22-604(8) as follows:

Sec. 22-596. Permit required.

- (a) No sign shall be placed, erected, moved, replaced, or reconstructed without a permit unless specifically exempted in this chapter. Such permit shall be issued by the zoning administrator provided the sign meets all the requirements of this chapter. Applications for a sign permit shall be made to the zoning administrator on the form provided by him and shall include a set of plans (to scale), showing site location, sign size, colors, the design, type and size of lettering, method of illumination (if any), and the type of materials to be used in construction.
- (b) All signs requiring a permit and signs permitted by section 22-603(7) and (9) that are to be located within the historic zoning district shall be subject to the provisions of section 22-397 et seq. and section 22-604(8).

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

Councilor Stone inquires if the Ordinance was brought before the Planning Board.

City Planner Bearse explains she was not directed to send it to the policy committee. The process started with the Historic District Commission and then went on to the planning board.

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Councilor O’Hearne asked if it is normal practice for the planning board to send it to us as an ordinance. Questioned if the ordinance had gone through legal review.

City Planner Bearse explains Ordinance 614 has gone through legal review and this is the same process she has always followed.

Assistant Mayor Matteau states that City Planner Bearse is exactly the process that should be followed.

Councilor Koloski agrees with Assistant Mayor Matteau

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to pass Ordinance 614 to a second reading and public hearing at the October 11, 2023 Council Meeting.

Assistant Mayor Matteau read the Ordinance summary into the record.

Councilor Koloski Comments that he got to see at the planning board level and hopes this ordinance passes.

Assistant Mayor Matteau agrees with Councilor Koloski and adds support for the business’ in Claremont.

Councilor O’Hearne asked City Planner Bearse when the ordinance was passed by the Planning Board.

City Planner Bearse recalled in the last 6 months.

Councilor Limoges thinks the ordinance change is a good thing.

Councilor Stone asks if Pleasant Street apart of the Historic District

City Planner Bearse states Pleasant Street is apart of the Historic District

Councilor Stone inquires if the revitalization of Pleasant Street is outside of the character of the Historic District.

Councilor Koloski is fair for business that are coming into the community simple guidelines. Also explains he agrees that not all items on Pleasant Street match.

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Councilor Stone appreciates the effort to streamline the process in general. Councilor Stone expressed that he does not agree that the City can things that a business owner cannot.

Assistant Mayor Matteau if we don't adopt this ordinance to be less restrictive also explaining disagreement that the City can do whatever it wants.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to withdraw the motion and make a motion to table.

Roll call:

O'Hearne – Yes

Batchelder – No

Stone - Yes

Matteau - No

Koloski - No

Limoges – Yes

Contois - No

Mooshian - No

Girard - No

Motion Failed: 3-6

Councilor Koloski asks City Planner Bearse what the process is if the Council made changes to the Ordinance. States he is for making changes but to think about passing the ordinance and then have it reviewed and make changes at a later date.

Councilor Batchelder asks for clarification on vinyl signs.

Assistant Mayor Matteau states right not the vinyl signs have to go through a certificate of appropriateness, pay a fee and notify the abutters. The rules we have on the books now are stricter than what the ordinance is going to allow people to do. Feels it is not prudent for the council not to pass the ordinance now and make the changes after.

Councilor Stone inquires when the last time a vinyl sign given permission on pleasant street that was not done by the City.

Councilor Koloski states temporary signage is not included; thirty-day period is another thing to look at.

Councilor Limoges asks about vinyl lettering.

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City Planner Bearse explains how to go about using vinyl lettering.

Councilor Stone, I think it safe to say pleasant street will not collapse if we do not pass this tonight, I think we ought to do it right and come back to do this correctly.

Assistant Mayor Matteau all the ordinance is doing is making it easier for a business to come in.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to move the question on the floor.

Roll call:

O’Hearne – No

Batchelder – Yes

Stone - No

Matteau -Yes

Koloski - No

Limoges – No

Contois -Yes

Mooshian - Yes

Girard -No

Motion Failed: 4-5

Mayor Girard states the Council will continue the discussion.

Councilor Koloski if the Council does not move on this tonight what the timeframe looks like.

City Planner Bearse reminds the council of the design guidelines which the city had already adopted. Looking at December before anything would happen with the change in the Ordinance.

Councilor Stone feels the City can not have things both ways by wanting a Historic Claremont Downtown

City Planner Bearse states the city is not required to follow its own rules.

Councilor Koloski if we don’t vote on this what changes are we requesting, we need to be clear to bounce back to the board

Mayor Girard leaves the motion on the floor

Mayor Girard opened up a public hearing.

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Rebecca McKenzie Ward II- have so concerns with so many more things than this. Expresses frustration with efficiency.

Mayor Girard closes public hearing and brings back to council.

Roll call:

O’Hearne – No

Batchelder – No

Stone - No

Matteau -Yes

Koloski - No

Limoges – No

Contois -Yes

Mooshian - Yes

Girard -No

Motion Failed: 4-5

Mayor Girard states first reading of Ordinance has failed.

Mayor Girard asks for clarification on what the Council is making for changes.

Councilor Stone suggests striking the whole sentence in sentence 2.

Councilor Koloski asks when design guidelines were adopted and by who.

Councilor Limoges is in favor of striking number two and adding language for allowing all 2 material signs.

Councilor Batchelder is looking to be cautious how the council words this sentence.

City Planner Bearse explains why it is important not use subjective determinations.

Councilor Stone states he has an issue with section 22 596 second sentence.

Assistant Mayor Matteau feels the City should go before the HDC if the City wants to do anything in the future.

Mayor Girard thanks City Planner Bearse for her time.

COMMITTEE REPORTS

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Policy committee - Met on green burials – key issues on north street.

Planning Board – Met on a driveway appeal.

Historic Committee- The next meeting is tomorrow September 28th.

Conservation Commission- Updating natural recourse inventory.

Councilor Stone questioned Councilor Contois about the clean up at cathole and if there were any more issues going on.

Councilor Contois shares there seems to be shooters as well as a contractor dumping his waste up there.

Manager Manale states this is not the only section we are having problems with, the City has a plan to purchasing cameras.

Councilor Stone questions if the police have been notified of the issues.

Councilor Contois stated there are game cameras out there.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asks about the topic of a DES hearing; if this is this something we as a governing body can request happens.

Councilor Koloski wants to know if the Council need to get behind a letter of support.

Councilor Stone in support of drafting a letter on behalf of the Council.

Manager Manale we have it scheduled with our attorney on the October 11th.

Assistant Mayor Matteau if they come or not we need to put a letter of support in.

Councilor Limoges is in favor of the letter as well.

Councilor Contois states that Southwestern Community Services is looking for volunteer drivers.

Councilor Stone asked for clarification on Tax Deeding.

Councilor O’Hearne inquires when the main street buildings are coming down.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Manager Manale will find out the dates for demolition.

Assistant Mayor Matteau asks if the City has a contract on the buildings being demoed.

Manager Manale yes we do.

Councilor Limoges asks for an update on the smoke stack.

Manager Manale once it stops raining we can move forward.

Mayor Girard calls or a break.

A motion was made by Councilor O’Hearne seconded by Councilor Stone to go into Non Public under RSA-91 A3;2 (C) Matters which, if discussed in public, would likely affect adversely the reputation of any person, other than a member of the public body itself, unless such person requests an open meeting. This exemption shall extend to include any application for assistance or tax abatement or waiver of a few, fine or other levy, if based on inability to pay or poverty of the applicant.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - No

Mooshian - Yes

Girard - Yes

Motion carried: 8-1

Council reconvened the public session at 8:56 p.m.

A motion was made by Councilor Koloski and seconded by Councilor Limoges to seal the minutes. The reason was Affect adversely the reputation of any person other than a member of the public body itself.

Roll call

O’Hearne – Yes

Batchelder - Yes

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion Carried: 9-0

CONSULTATION WITH LEGAL COUNSEL

ADJOURNMENT

At 8:58 p.m., a motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice vote:
O’Hearne – Yes
Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion Carried: 9-0

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council